

		As to sanctions, CCP §2033.280(c) provides that “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” Accordingly, the Court GRANTS Plaintiff monetary sanctions against Defendant La Clinique Moliere Birthplace and Women’s Wellness, Inc. in the reduced amount of \$285 (1.5 hrs at \$150/hr + \$60 filing fee). Sanctions are due and payable to Plaintiff’s counsel <u>within 30 days</u> of notice of this order. Plaintiff to give notice.
9.	30-2024-01412477 Sanchez vs. Mehdi	1. Motion to Compel Deposition (Oral or Written) Plaintiff, Jessica Marlene Sanchez Monterroso, moves for an order: (1) compelling Defendant Derma Noor, Inc. d/b/a Derma Noor Medical Spa (“Derma Noor”) to designate one or more properly prepared Persons Most Knowledgeable to provide complete testimony on all 30 categories identified in the Second Amended Notice of Taking Deposition of Derma Noor’s Person Most Knowledgeable (“PMK”) (the “Second Amended Notice”) and to appear for a continued deposition within 14 days of the Court’s order; (2) compelling Derma Noor to produce all documents requested in the 38 categories identified in the Second Amended Notice at least three (3) calendar days prior to the continued deposition date; (3) awarding monetary sanctions against Derma Noor, and/or its counsel of record, in favor of Plaintiff in the amount of \$3,500 to compensate Plaintiff for expenses and attorney’s fees in bringing this motion; and (4) awarding monetary sanctions against Derma Noor, and/or its counsel of record, in favor of Plaintiff in the amount of \$2,961.90 to compensate Plaintiff for reasonable expenses associated with the PMK deposition that occurred on December 4, 2025. The Motion is DENIED. Initially, no proof of service of the instant motion to compel appears in the Court’s file. More importantly, the motion is untimely. Code of Civil Procedure section 2025.480(a) provides: “If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent’s control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.” Code of Civil Procedure section 2025.480(b) states, in relevant part: “[t]his motion [motion to compel answers or produce documents at a deposition] shall be made no later than 60 days after the completion of the record of the deposition” The 60-day deadline is mandatory. (<i>Weinstein v. Blumberg</i> (2018) 25 Cal.App.5th 316, 321.) In footnote 3, the Court of Appeal additionally stated, “[p]rejudice is not required; discovery deadlines are mandatory and we have treated them as jurisdictional. (<i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410, 68 Cal.Rptr.2d 708), even though a trial court may grant relief from deadlines to file motions to compel. Where a party does not obtain trial court relief from the statutory deadline, ‘failure to move for further answers within the statutory time forecloses further relief’ (<i>O’Brien v. Superior Court</i> (1965) 233 Cal.App.2d 388, 391.)” (<i>Id.</i> at p. 322, fn. 3.) Footnote 3 cites to <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, which explained that the deadline is jurisdictional insofar as it renders the court without authority to rule on motions to compel other than to deny them. (<i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410.)

		According to The Rutter Guide, “[i]t is unclear whether the deposition record is ‘completed’ when the reporter sends <i>notice</i> that the transcript is available for review . . . or only after the expiration of time to sign or correct the transcript The safer course is to use the date of the reporter’s notice.” (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group June 2026 Update) § 8:801.) Upon completing the transcript, the reporter notifies the deponent and other parties attending the deposition that the original transcript is ready for review and signature by the deponent. (Code Civil Procedure § 2025.520(a).) Here, the PMK deposition of Derma Noor was conducted on December 4, 2025. (Declaration of Charles G. Hemming III (“Hemming Decl.”), ¶ 6, Ex. B.) Plaintiff does not provide evidence as to the date of the reporter’s notice. However, Plaintiff’s counsel attaches excerpts of the deposition transcript along with the Certification of the Certified Shorthand Reporter, which is dated December 18, 2025. (Ex. B to Hemming Decl.) Assuming the date of the reporter’s notice is the same date the Certification was signed, i.e., December 18, 2025, the motion is untimely. 60 days from December 18, 2025, is February 16, 2026 (court holiday). Although the separate statement in support of the instant motion was filed on February 13, 2026, the instant motion was not filed until February 24, 2026, after 60 days from December 18, 2025. The notice of motion and all supporting papers must be filed within the mandatory 60-day period. (<i>Weinstein v. Blumberg</i> (2018) 25 Cal.App.5th 316, 319-321 [finding motion to compel further responses to deposition notice untimely where the papers supporting the motion were not filed and served until after the 60-day deadline to file the motion to compel even though the notice of motion and motion was timely served within the 60-day deadline].) Plaintiff fails to address and show that the instant motion is timely brought, and does not request relief from the 60-day statutory deadline. Based on the foregoing, since the 60-day deadline is mandatory and discovery deadlines have been treated as jurisdictional, the Court is without authority to rule on the motion to compel other than to DENY it. Plaintiff to give notice.
11.	30-2025-01518357 Carter vs. Built to Perfection, Inc	1. Motion to Compel Production Plaintiff Judith A. Carter (“Plaintiff”) moves to compel defendant Built to Perfection, Inc. (“Defendant”) to serve further responses to Plaintiff’s Requests for Production, Set One, Set One, Nos. 1-25. Plaintiff’s initial meet and confer correspondence referenced only Nos. 12, 15, and 16. (Exhibit 4 at p. 9.) In response, Defendant’s counsel asked Plaintiff’s counsel to please advise whether he wished to have supplemental responses indicating a reasonable search was made for documents. (Exhibit 5 at pp. 18-20.) Defendant agreed to supplement Nos. 12, 15, and 16 to include language that “a diligent search and a reasonable inquiry has been made in an effort to comply” with the demands but ultimately failed to provide the agreed-upon supplemental responses. (Exhibit 7 at p. 3; Exhibit 9 at p. 2.) Plaintiff did not raise issue with any other requests until an email sent on June 9, 2026, when Plaintiff asserted that responses to Nos. 2-11, 13-14, and 17-20 were deficient. (Exhibit 9 at p. 2.) Plaintiff demanded amended responses no later than June 11, 2026. (Exhibit 9 at p. 4.) Defendant’s counsel